NICODEMUS KHAFULA (FORMERLY KNOWN AS NICHODEMUS KAVARA)
versus
PELAGIA MAKONESE N.O (IN HER CAPACITY AS Executrix of the Estate of Late CHRISTINE KHAFULA Dr 2287/24)
and
EMMANUEL TAFADZWA NHACHI
and
MASTER OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
PHILIPS J
HARARE; 20 July 2026

M C Nyeperai for the Applicant
N Mangoi for the first Respondent
Emmanuel Tafadzwa Nhachi- Self-actor

PHILLIPS J:

1. This is a court application for rescission of a default judgment in terms of r 29 (2) of the High Court Rules,2021.

Factual Background

2. The applicant was married to the late Christine Khafula under the then Marriages Act [*Chapter* 5:11], now the Marriages Act [*Chapter* 5:17], and the marriage was dissolved by death. The applicant submitted that sometime in 2022, the applicant and his late wife agreed to divorce amicably on an uncontested basis as this was pursuant to an irretrievable breakdown of marriage.
3. The applicant submitted that the divorce proceedings were enrolled under case number HC5834/22. The applicant argued that during the uncontested divorce proceedings, the court raised a query regarding the first consent paper which he and his late wife had signed and sent through DHL, and the second respondent appraised him of this development to which the second respondent was instructed to wait for further instructions.
4. The reason that the applicant gave the to wait instruction was because the applicant's late wife was critically ill and was on life support in Australia. The applicant averred

that he never got the opportunity to revert and instruct the second respondent to proceed with and finalize the divorce proceedings. The applicant submitted that he could not unilaterally continue with the divorce proceedings in light of his wife's critical medical condition. He had intended to revert to the second respondent upon her recovery with a view to finalising the divorce proceedings.

5. Unfortunately, his wife passed away on 25 February 2023 before she recovered, thereby depriving the applicant the opportunity to revert to the second respondent and proceed with the finalisation of the divorce proceedings.
6. The applicant's position is that, without his knowledge, consent, or authority, the second respondent filed a forged document purporting to be an amended consent paper allegedly executed by the applicant and his wife on 19 December 2022.
7. The applicant further alleged that the second respondent appeared before this Honourable Court on 16 February 2023, purporting to act on the applicant's behalf without his knowledge or authority. It is further contended that, as a result of the second respondent's misrepresentations, this court was induced to grant judgment on the basis of the purported amended consent paper.
8. The applicant further submitted that the alleged consent paper makes a mis-representation because it was executed and signed by him and his late wife on 19 December 2022 in Harare, to which the applicant vehemently contends because during that period, the applicant was in the United Kingdom and his late wife was seriously ill in Australia. His argument was that both parties were abroad and this amounts to a serious misrepresentation with serious fraudulent connotations.
9. The applicant submitted his passport and a report from the Chief Immigration Officer as evidence that he was not in Harare at the time that the purported amended consent paper was signed. The applicant further submits that if he had signed the document, it would have needed to be notarised by a Notary Public in England and the second respondent being a lawyer knew that.
10. The applicant submits that relying on the decree of divorce, the first respondent was appointed Executrix of the Estate of the Late Christina Khafula.
11. The applicant has filed an application for rescission of a default judgment and setting aside of a divorce decree in terms of r 29(1)(a) of the High Court Rules,2021. The

decree was granted by this court under case number HCH 5834/22 on 16 February 2023. The applicant submitted that the application is based on the fact that the decree was obtained through a fraudulent misrepresentation perpetrated by the second respondent, who is a legal practitioner and officer of this court.

12. The applicant maintained that the order was allegedly sought and obtained on his behalf without his consent, presence or knowledge at the very least. This is because, according to the applicant, the divorce order was erroneously granted it must be rescinded.

PRELIMINARY POINTS

13. The first respondent submitted the following preliminary points - that the applicant on page 75 paragraph 14 raised dates when the late Christina Khafula was sick as new material facts, these were not raised in the founding affidavit on page 18 paragraph 18.
14. The second respondent submitted that the applicant did not provide the exact dates that his late wife was critically ill yet the documents were in his custody prior to instituting the case.
15. It was submitted that an application stands or falls on the founding affidavit and an applicant cannot bolster the case its case in the answering affidavit. The respondents further submitted that new issues cannot be raised in an answering affidavit and referenced the case *Mobil Oil* v *Travel Forum 1990 (1) ZLR page 67* where it is well established that new matters shouldn't be raised in answering affidavits as the full matter should be stated in the founding affidavit.
16. The principle relied upon by the first respondent is indeed settled law. In *Mobil Oil Zimbabwe (Pvt) Ltd* v *Travel Forum (Pvt) Ltd* 1990 (1) ZLR 67 (S), the court held that an applicant is not permitted to raise an entirely new cause of action or rely on new material facts in a replying affidavit in order to cure defects in the founding papers. The rationale is that a respondent is entitled to know the case it is required to meet from the founding affidavit.
17. However, this court finds that the present matter is distinguishable from *Mobil Oil*. The applicant has not sought to introduce a new cause of action or a fresh factual

basis for the relief sought. The cause of action remains that the divorce decree was fraudulently obtained through the filing of a forged amended consent paper and that the judgment was granted in the absence of the applicant's knowledge, authority, or consent. Those allegations were clearly pleaded in the founding affidavit.

18. The further particulars concerning the period during which the deceased was critically ill merely amplify and explain the factual circumstances already pleaded in the founding affidavit. They do not alter the substance of the applicant's claim, nor do they introduce a new issue requiring the respondents to answer a fundamentally different case. Courts have consistently distinguished between impermissibly introducing a new case and merely elaborating upon facts already pleaded.
19. Moreover, the precise dates on which the deceased became critically ill are not the material facts upon which the rescission application is founded. The material issue is whether the applicant authorised the continuation of the divorce proceedings and whether the decree was procured through fraud and misrepresentation. The additional details regarding the deceased's illness serve only to explain why the applicant did not revert to the second respondent with instructions to proceed with the divorce and do not constitute a separate cause of action.
20. In any event, no prejudice has been demonstrated by the first respondent. The first respondent has had the opportunity to address these factual averments and has done so in the opposing papers. The purpose of pleadings is to ensure fairness, not to elevate form over substance. Accordingly, I am satisfied that the impugned averments merely provide further clarification of facts already pleaded and do not offend the principle enunciated in *Mobil Oil Zimbabwe (Pvt) Ltd* v *Travel Forum (Pvt) Ltd* 1990 (1) ZLR 67 (S). Accordingly, the preliminary point lacks merit and is hereby dismissed.
21. The second preliminary point raised by the first respondent was that, the applicant cited the wrong rule on page 6, paragraph 6, which seeks to rescind an order granted in his absence. It was submitted that the applicant was not absent before WAMAMBO J for the divorce proceedings as such he cannot evoke rule 29(1)(a). The first respondent averred that, reference to the court order which the applicant seeks to have rescinded notes that the applicant was actually the plaintiff in those proceedings and the lawyer who appeared before the court that day was acting on behalf of the

applicant. As such, the judgement cannot be said to be in default judgement. Thus, the application is incompetent based on an incorrect rule.

22. Further, the first respondent submitted, in limine, that the application itself has been overtaken by events, as such if the decree of divorce is rescinded who will the applicant be married to, his wife is now deceased. It was argued that what the applicant is seeking for will produce an order with no legal effect.
23. In support of the opposition of the application, the second respondent also submitted that the application cited the wrong rule, the applicant's legal practitioner who clearly had full instructions to appear on his behalf was present. He also added that the matter has been overtaken by events, arguing that the applicant only filed the application for rescission after the death of his wife; he submitted that even if the divorce was not granted the marriage would have ended by death. He opined that what the applicant seeks to do is to be pronounced as surviving spouse once the divorce order is rescinded.
24. In response, to the points *in limine* the applicant again submitted that he did not participate, and that the consent paper was forged and that his application raises factual facts. He urged the court to find out if the applicant was indeed present.
25. The applicant submitted that the fact that the order indicates that the applicant was present does not mean that he was there, the question is whether the consent paper was genuine and if there was authority to obtain such. He further, told the court that the applicant was not aware that the matter had been set down, the second respondent had gone on a frolic of his own. He submitted that consent paper falsely represents that it was signed in Harare when the applicant was out of country and had that been disclosed to the court, the court would not have granted that order.
26. The applicant further, submitted that, the order that was erroneously granted, a material error existed, and that the order is affecting the applicant's proprietary rights. He submitted that the court must and has power to investigate on the fraud which occurred.
27. The second applicant submitted to the court that he had been arrested at the instance of the applicant but the nothing became of the criminal case.
28. **The Law**

Rule 29 of the High Court Rules, 2021, provides that:

"(1) The court or a judge may, in addition to any other powers it or he or she may have, on its own initiative or upon the application of any affected party, correct, rescind or vary-

(a)An order or judgement erroneously sought or erroneously granted in the absence of any party affected thereby; or

(b)An order or judgment in which there is an ambiguity or a patent error or omission, but only to the extent of such ambiguity, error or omission; or

(c)An order or judgment granted as a result of a mistake common to the parties."

(2) Any party desiring any relief under this rule may make a court application on notice to all parties whose interests may be affected by any variation sought, within one month after becoming aware of the existence of the order or judgment.

(3) The court or a judge shall not make any order correcting, rescinding or varying an order of judgment unless satisfied that all parties whose interests may be affected have notice of the order proposed."

29. On the preliminary point that the matter has been overtaken by events, and the application is now moot. The law on mootness was clearly restated in *Ndewere* v *President of Zimbabwe NO & Ors* SC 57/22 where MAKONI J stated as follows:

> "A matter is moot if the dispute becomes academic by reason of changed circumstances, thus making the jurisdiction of the court unsustainable."

30. The issue of mootness was also comprehensively dealt with by the Constitutional Court in *Thokozani Khupe & Anor* v *Parliament of Zimbabwe & Ors* CCZ 20/19 at p 7 where it was held as follows:

> "A court may decline to exercise its jurisdiction over a matter because of the occurrence of events outside the record which terminate the controversy. The position of the law is that if the dispute becomes academic by reason of changed circumstances, the court's jurisdiction ceases and the case becomes moot…The question of mootness is an important issue that the court must take into account when faced with a dispute between parties. It is incumbent upon the Court to determine whether an application before it still presents a line dispute as between the parties. The question of mootness of a dispute has featured repeatedly in this and other jurisdictions. The position of the law is that a court hearing a matter will not readily accept invitation to adjudicate on issues which are of such a nature that the decision sought will have no practical effect or result."'

31. Similarly, the above principle was followed in *MDC & Ors* v *Mashavira & Ors* SC 56/20 of p 33 where it was stated;

> "…a court may decline to exercise its jurisdiction over a matter because of the occurrence of events outside the record which terminate the controversy between the parties … [1] the dispute becomes academic by reason of changed circumstances, the case becomes moot and the jurisdiction of the court is no longer sustainable."

Analysis

32. It is a general principle of our law that once a final order is made, that order cannot be altered by the court. However, rule 29 is an exception to that principle, which allows a court to revisit a decision it has previously made but only in a restricted sense. Where a court is empowered to revisit its previous decision, it is not, generally speaking, confined to the record of the proceedings in deciding whether a judgment was erroneously granted.
33. The specific reference in rule 29 to a judgment or order granted "*erroneously sought or erroneously granted in the absence of any party affected thereby*;" envisaged a situation where such a party may be able to place facts before the court, which facts would not have been before the court that granted the order in the first place - see *Grantually (Pvt) Ltd & Anor* v *UDC Ltd* 2000 (1) ZLR 361(S), 364H – 365 A-B.
34. Further it is also established that once a court holds that a judgment or order was erroneously granted in the absence of a party affected, it may correct, rescind or vary such without further inquiry.
35. In the case of *Munyimi* -v- *Tauro SC41/13* the court stated:

> "under r 29(1)(a) for the applicant to succeed he or she must show that;
>
> (1) the judgment was erroneously sought or granted
>
> (2) the judgment was granted in his or her absence
>
> (3) the applicant's rights or interests are affected by the judgment."

36. Put differently a court is only obliged to decide whether or not the judgment was entered in error. If found to have been erroneously entered the applicant is entitled to rescission.

37. In this instance the order was not erroneously granted, neither was the applicant absent, the second respondent was representing the applicant. Although the applicant alleges that he had told the second respondent that he will revert back to him with further instructions, there is no proof of that position. The applicant had the burden to prove this and on a balance of probabilities, it is more likely that the second respondent was able to proceed with the instruction to obtain the decree for divorce which he did. I do agree with the respondents' submission that the applicant has cited the wrong, therefore the point in limine is upheld.
38. On the point in limine that the matter has been overtaken by events, I agree with these submissions. This matter is now moot. There are outside circumstances that have occurred that affect the court's jurisdiction. Who will the applicant be married to should the divorce order be rescinded. Why did the applicant wait until his wife died in order to seek to rescind.
39. Yes, the applicant is entitled to bring before the court whatever application he pleases, but is the application sustainable. In this instance, I find that the application is no longer sustainable.
40. The court is relying on the fact that the applicant's ex-wife is now deceased and her estate has now even been registered, this ended the controversy. The matter is moot and this is dispositive of the matter.

Order

41. In the circumstances, the court orders as follows:
    a. The first and second respondent's second and third preliminary points are upheld.
    b. The application is dismissed with costs.

PHILLIPS J _____

Manase and Manase Legal Practitioners, Applicant's Legal Practitioners
Matsikidze Attorneys-At-Law, first Respondent's Legal Practitioner